Town of Paonia
Office of the Town Clerk
214 Grand Ave.
P.O. Box 460
Paonia, CO 81428
O: (970) 527-4101
F: (970) 527-4102

April 21, 2026

RE: Town of Paonia – Colorado Open Records Request C 26-11

I am in receipt of your request for records under CORA, received by the Clerk's Office on April 7, 2026: *"All communications (including email, text messages, Microsoft Teams messages, and written correspondence) between any combination of Mayor Paige Smith, Town Administrator Stefen Wynn, Town Attorney Clayton Buchner, and any member of the Board of Trustees, regarding Pete McCarthy, Pete McCarthy's flyer, or the Board's written response to that flyer, for the period of March 25 through March 30, 2026.*

All drafts, revisions, and tracked changes of the letter published by the Board of Trustees on or about March 30, 2026, responding to Pete McCarthy's flyer, created prior to or on March 30, 2026."

Any communications that fall under the description of including Clay Buchner are privileged Attorney/Client communications per C.R.S.§24-72-204(1)(a) and C.R.S.§13-90-107(1)(b) and C.R.S.§24-72-204(3)(a)(iv) and are not public records.

The two drafts of the letter requested are already publicly available here:

https://paoniaco.portal.civicclerk.com/event/562/files/agenda/1320

https://townofpaonia.colorado.gov/sites/townofpaonia/files/documents/Letter%20to%20Paonia%20Citizens%20-%2003312026.pdf

Attached are the documents that meet your request.

1) Formal Complaint_Pattern of Retaliation…
2) FW_ Formal Complaint_Pattern
3) My Flyer
4) Re_Formal Complaint_Pattern

With the delivery of these records, the Clerk's Office has closed this CORA Request.

Thank you,

Samira M. Vetter

Samira M. Vetter, CMC
Town Clerk/ Official Custodian of RecordsTown of Paonia
E: SamiraV@TownofPaonia.com

CC:

Outlook

Formal Complaint: Pattern of Retaliation and Request for Board Action

From Pete McCarthy <petefromsf@gmail.com>

Date Mon 3/30/2026 3:29 PM

To PaigeS@townofpaonia.com <PaigeS@townofpaonia.com>; RickS@townofpaonia.com <RickS@townofpaonia.com>; WalterC@townofpaonia.com <WalterC@townofpaonia.com>; LucyH@townofpaonia.com <LucyH@townofpaonia.com>; MikeH@townofpaonia.com <MikeH@townofpaonia.com>; KarenT@townofpaonia.com <KarenT@townofpaonia.com>; HectorM@townofpaonia.com <HectorM@townofpaonia.com>

Cc Samira V <SamiraV@townofpaonia.com>

1 attachment (49 KB)

board-letter-2026-03-30.pdf;

CAUTION: This email originated from outside your organization. Exercise caution when opening attachments or clicking links, especially from unknown senders. Dear Board of Trustees, Please find attached a formal complaint with 27 supporting citations. It documents a pattern of retaliation against individuals who have raised concerns about Town Administrator Stefen Wynn, and it includes six specific requests for Board action. This letter is also being submitted for the public record of today's special meeting. If the town clerk does not enter it into public record, I ask that one of you do. I am available to discuss any of these matters at the Board's convenience. Respectfully, Pete McCarthy Paonia, CO 81428 petefromsf@gmail.com

Outlook

FW: Formal Complaint: Pattern of Retaliation and Request for Board Action

From Paige S <paiges@townofpaonia.com>
Date Mon 3/30/2026 3:37 PM
To Stefen Wynn <StefenW@townofpaonia.com>

1 attachment (49 KB)
board-letter-2026-03-30.pdf;

Paige Smith Mayor, Town of Paonia Sender and receiver should be mindful that all my incoming and outgoing emails may be subject to the Colorado Open Records Act, § 24-72-100.1, et seq. -----Original Message----- From: Pete McCarthy Sent: Monday, March 30, 2026 3:30 PM To: Paige S ; Rick S ; Walter Czech ; Lucy H ; Mike H ; Karen Tarnow ; Hector M Cc: Samira Vetter Subject: Formal Complaint: Pattern of Retaliation and Request for Board Action [You don't often get email from petefromsf@gmail.com. Learn why this is important at https://aka.ms/LearnAboutSenderIdentification] CAUTION: This email originated from outside your organization. Exercise caution when opening attachments or clicking links, especially from unknown senders. Dear Board of Trustees, Please find attached a formal complaint with 27 supporting citations. It documents a pattern of retaliation against individuals who have raised concerns about Town Administrator Stefen Wynn, and it includes six specific requests for Board action. This letter is also being submitted for the public record of today's special meeting. If the town clerk does not enter it into public record, I ask that one of you do. I am available to discuss any of these matters at the Board's convenience. Respectfully, Pete McCarthy Paonia, CO 81428 petefromsf@gmail.com

Outlook

My Flyer

From Lucy H <LucyH@townofpaonia.com>
Date Thu 3/26/2026 10:03 AM
To Paige S <paiges@townofpaonia.com>

2 attachments (114 KB)

10 Things Paonia Should Know About Its Town Administrator.pdf; 10 Things Paonia Should Know About Its Town Administrator.docx;

Hi Paige,

I'm attaching the flyer I created and distributed. Please understand that I did this of my own accord as one citizen, I am in no way trying to speak for the Board and as such didn't tell you or any other Trustee what I was doing. I do feel it was important to get this information out there and did just ask Stefen to review for accuracy as he was the subject of much of it. He was in no way part of creating this - that was all me. I do apologize if this ends up creating difficulties for you or the Board as a whole.

Thanks!

Lucy Hunter
Trustee
Town of Paonia

Sender and receiver should be mindful that all my incoming and outgoing emails may be subject to the Colorado Open Records Act, § 24-72-100.1, et seq.

Outlook

Re: Formal Complaint: Pattern of Retaliation and Request for Board Action

From Lucy H <LucyH@townofpaonia.com>
Date Mon 3/30/2026 6:04 PM
To petefromsf@gmail.com <petefromsf@gmail.com>
Cc Paonia Legal [redacted]

Mr. McCarthy,

I am writing in my individual capacity as a Trustee of the Town of Paonia to acknowledge receipt of your formal complaint. I want to confirm that your letter has been received and that I take its contents seriously.

As an individual Trustee, I am not authorized to speak on behalf of the full Board of Trustees, and this response should not be construed as representing the Board's collective position. I am providing this acknowledgment because I believe every citizen who takes the time to submit a formal complaint deserves confirmation that it has been received.

With respect to the substantive matters raised in your complaint, I must note two important constraints on what I am able to address at this time:

First, several of the matters referenced in your complaint involve or relate to pending litigation. It would be inappropriate for me to comment publicly on those matters, and doing so could prejudice the Town's legal position. I am therefore unable to address those specific issues in this correspondence.

Second, certain other matters you have raised involve the employment or personnel affairs of Town employees or officials. Under Colorado law and sound governance practice, personnel matters are confidential. I am not in a position to discuss, confirm, or characterize those matters in a public communication.

I can, however, speak to the concern you have raised regarding the Town's process for receiving and acting on complaints directed at the Town Administrator. A municipality should have a clear, documented, and accessible process that ensures complaints of this nature are received by the Board directly — not routed through the subject of the complaint — and that complainants receive a meaningful response. I share your concern that such a process should exist, and I intend to raise this as a matter requiring the Board's attention.

I am not in a position to commit to a specific outcome or timeline on behalf of the Board, but I can assure you that your concern on this point has been heard by at least one member of that body.

Thank you for your engagement in the governance of our community. Raising these concerns through formal channels reflects exactly the kind of civic participation that local government depends on.

Respectfully,

Lucy Hunter
Trustee
Town of Paonia

Sender and receiver should be mindful that all my incoming and outgoing emails may be subject to the Colorado Open Records Act, § 24-72-100.1, et seq.

------ Original Message ------
From "Pete McCarthy" <petefromsf@gmail.com>
To "Paige S" <paiges@townofpaonia.com>; "Rick S" <RickS@townofpaonia.com>; "Walter Czech" <WalterC@townofpaonia.com>; "Lucy H" <LucyH@townofpaonia.com>; "Mike H" <MikeH@townofpaonia.com>; "Karen Tarnow" <KarenT@townofpaonia.com>; "Hector M" <HectorM@townofpaonia.com>
Cc "Samira Vetter" <SamiraV@townofpaonia.com>
Date 3/30/2026 3:29:36 PM
Subject Formal Complaint: Pattern of Retaliation and Request for Board Action

> [You don't often get email from petefromsf@gmail.com. Learn why this is important at https://aka.ms/LearnAboutSenderIdentification]
>
> CAUTION: This email originated from outside your organization. Exercise caution when opening attachments or clicking links, especially from unknown senders.
>
> Dear Board of Trustees,
>
> Please find attached a formal complaint with 27 supporting citations.
> It documents a pattern of retaliation against individuals who have
> raised concerns about Town Administrator Stefen Wynn, and it includes
> six specific requests for Board action.
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> This letter is also being submitted for the public record of today's
> special meeting. If the town clerk does not enter it into public
> record, I ask that one of you do.
>
> I am available to discuss any of these matters at the Board's convenience.
>
> Respectfully,
>
> Pete McCarthy
> Paonia, CO 81428
> petefromsf@gmail.com

Submitted: 4/6/2026

Received by Clerk: 4/7/2026

Deadline: 4/10/2026

Extension: 4/21/2026

Fees: n/a

Fulfilled: 4/21/2026

Colorado Open Records Act Request Form

The first hour of research and retrieval is free and you will be charged thereafter at $33.58/hr in 30 minute increments. You will be contacted before any paid time is incurred with an estimated cost and request a required deposit to continue the records request. Black and white 8.5 x 11 copies will be charged at $0.25/page

Please read the Town of Paonia's Colorado Open Records Act Public Records Request Policy for more information on submission, response, procedure, and fees.
Please make sure there is at least one current and legible way to contact you for any questions the Town Clerk may have to help in your request.

Name: Pete McCarthy Date: April 6, 2026 Phone: (415) 623-9773

Mailing Address (if applicable):_____

Email Address (if applicable): petefromsf@gmail.com Physical or PDF: PDF

This form is for requesting already existing records and does not apply to Criminal Justice Records which must be requested directly from the Paonia Police Department. To facilitate the search, please be as specific as possible in describing the requested document(s).

Number of Copies	Document Name or Detailed Description
	All communications (including email, text messages, Microsoft Teams messages, and written correspondence) between any combination of Mayor Paige Smith, Town Administrator Stefen Wynn, Town Attorney Clayton Buchner, and any member of the Board of Trustees, regarding Pete McCarthy, Pete McCarthy's flyer, or the Board's written response to that flyer, for the period of March 25 through March 30, 2026.
1	
	All drafts, revisions, and tracked changes of the letter published by the Board of Trustees on or about March 30, 2026, responding to Pete McCarthy's flyer, created prior to or on March 30, 2026.
1	
	All legal opinions, memoranda, or written advice from Town Attorney Clayton Buchner regarding the use of the terms "libelous," "libel," or "defamation" in connection with Pete McCarthy, his flyer, or any citizen communication, for the period of March 25 through March 30, 2026.
1	

C.R.S. 24-72-201 to 24-72-309

Note: The Town Clerk will deem the request received on the next business day after submittal.